

Lessons from Andalusia on pluralism under Islamic rule

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SYSTEM PROMPT

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Write a concise, self-contained article entry for the title: "Lessons from Andalusia on pluralism under Islamic rule".

Overall topic for alignment: Rights of religious and sectarian minorities in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Summary: Lessons from Andalusia on Pluralism under Islamic Rule

Al-Andalus (711–1492 CE) serves as a complex historical case study for examining how Islamic legal traditions managed religious diversity—neither a utopia nor a failure, but an instructive laboratory of pluralism.

Qur'anic and Legal Foundations: Verses such as Q 2:256 ("no compulsion in religion"), Q 5:48, and Q 60:8 grounded classical jurists' development of the *ahl al-dhimma* framework, granting non-Muslims protection of life, property, and worship in exchange for the *jizya* tax—progressive for its era, though unequal by modern standards.

The Andalusian Model: Under the Umayyad caliphate of Córdoba (especially Abd al-Rahman III and al-Hakam II), Jews (e.g., Hasdai ibn Shaprut, Samuel ibn Naghrillah) and Christian Mozarabs participated in scholarship and governance. Features included legal autonomy for minorities, Arabic as shared scholarly language, and *convivencia*. However, coexistence was hierarchical, and harsher periods occurred under the Almoravids and Almohads.

Juristic and Theological Context: Andalusia followed the Maliki school, generally upholding classical dhimmi rules with local flexibility. Theological currents (Mu'tazila, Ash'ari, Maturidi) shaped attitudes toward minorities, while figures like Ibn Rushd and Ibn Arabi highlight contested intra-Muslim pluralism.

Orientalist Debates: Scholars range from romanticizers (Dozy, Menocal) to critics (Fernández-Morera). A balanced view: Andalusia surpassed medieval Christian Europe in tolerance but fell short of modern human rights norms.

Modern Implications: Tensions between classical sharia and the UDHR (1948) prompted the Cairo Declaration (1990) and reformist thinkers (Fazlur Rahman, An-Na'im, Abou El Fadl, Ramadan) who invoke *maqasid al-sharia* to argue for equal citizenship over the dhimmi framework.

Key Principles: Human dignity (*karāmah*) precedes confession; jurisprudence is contextual; pluralism is Qur'anically ordained; justice (*ʿadl*) is supreme; modern citizenship may better fulfill Qur'anic ethics than medieval categories.

Conclusion: Andalusia's inter-confessional collaboration produced figures like Maimonides and Ibn Rushd, demonstrating Islamic tradition's resources for pluralism—though medieval frameworks

require reinterpretation through justice, dignity, and sharia's higher objectives for contemporary application.

FULL CONTENT

Lessons from Andalusia on Pluralism under Islamic Rule

The story of al-Andalus (الاندلس)—the Muslim-ruled Iberian Peninsula from 711 to 1492 CE—has long been invoked in debates about coexistence between Muslims, Christians, and Jews. While modern romanticization sometimes exceeds historical reality, the Andalusian experience offers genuine, examinable lessons about how Islamic legal traditions handled religious diversity. For contemporary discussions on the rights of religious and sectarian minorities under sharia (شريعة), Andalusia remains a vital case study—neither a utopia nor a cautionary tale, but a complex laboratory of pluralism.

The Qur'anic Foundations of Pluralism

Sharia, often translated as "the path," derives its core principles from the Qur'an and Sunnah. Several Qur'anic verses form the theological basis for engagement with religious minorities:

- **"There shall be no compulsion in religion"** (لَا إِكْرَاهَ فِي الدِّينِ، Q 2:256) is frequently cited as a foundational principle protecting freedom of belief.
- **Q 5:48** acknowledges religious diversity as part of divine will: "To each of you We have prescribed a law and a method."
- **Q 60:8** instructs Muslims to deal kindly and justly with those who do not fight them on account of religion.

From these verses, classical jurists developed the category of **ahl al-dhimmah** (أهل الذمة)—"people of the covenant"—non-Muslims living under Islamic governance who, in exchange for paying the **jizya** (جزيّة) tax, received protection of life, property, and religious practice. This framework, while unequal by modern standards, was relatively progressive for the medieval era.

Andalusia as a Working Model

Under the Umayyad caliphate of Córdoba (756–1031), particularly during the reign of Abd al-Rahman III (912–961) and his son al-Hakam II, al-Andalus became a hub of intellectual and cultural exchange. Jews held prominent positions—Hasdai ibn Shaprut served as a court physician and diplomat; Samuel ibn

Naghrillah later became vizier in Granada. Christians, known as **Mozarabs** (مستعرب, "Arabized"), retained their churches, bishops, and legal autonomy in personal matters.

Key features of Andalusian pluralism included:

- **Legal autonomy:** Minorities adjudicated internal matters (marriage, inheritance, religious practice) under their own laws.
- **Linguistic integration:** Arabic became the lingua franca of scholarship across confessional lines.
- **Convivencia** (Spanish for "coexistence"): A scholarly term describing the coexistence—sometimes cooperative, sometimes tense—of the three faith communities.

It is essential to note that this coexistence was hierarchical, not egalitarian. Dhimmis faced restrictions on public religious display, certain dress codes, and political limitations. Periods of tension and violence occurred, notably under the Almoravids and Almohads, the latter of whom imposed harsh policies on non-Muslims and even on dissenting Muslims.

The Role of Juristic Schools

Andalusia was overwhelmingly **Maliki** (مالكي) in jurisprudence, one of the four major Sunni schools (madhāhib, مذاهب):

- **Maliki:** Founded by Imam Malik ibn Anas (d. 795), it emphasized the practice of Medina and was dominant in North Africa and Andalusia.
- **Hanafi** (حنفي): Founded by Abu Hanifa (d. 767), known for its use of reasoning (ra'y) and dominant in Ottoman and South Asian lands.
- **Shafi'i** (شافعي): Founded by al-Shafi'i (d. 820), systematized usul al-fiqh.
- **Hanbali** (حنبلي): Founded by Ahmad ibn Hanbal (d. 855), textually conservative, dominant today in Saudi Arabia.

Each school developed nuanced rulings on dhimmi rights, taxation, testimony in court, places of worship, and inter-religious marriage. The Maliki school in Andalusia generally upheld the classical dhimmi framework, though local practice often proved more flexible than legal manuals suggested. Shi'i and Mu'tazili theological currents existed but were marginal compared to the Sunni Ash'ari and Maturidi theological mainstream.

Theological Schools and Minority Treatment

Islamic **kalām** (كلام, theology) shaped attitudes toward "the other." The **Mu'tazila** emphasized reason and divine justice, sometimes leading to more universalist ethical positions. The **Ash'ari** and **Maturidi** schools, which became Sunni orthodoxy, focused on revelation but also produced sophisticated discussions of human dignity (karāmah, كرامة) rooted in Q 17:70: "We have honored the children of Adam."

Sectarian minorities within Islam—Shi'a, Ibadi, Sufis, and others—experienced varying degrees of acceptance. Andalusia, predominantly Sunni-Maliki, had limited Shi'i presence, but disputes between Maliki jurists and Sufi or philosophical figures (such as Ibn Rushd/Averroes and Ibn Arabi) reveal that intra-Muslim pluralism was itself contested.

Orientalist Perspectives

Nineteenth- and twentieth-century European Orientalists offered competing narratives. Some, like Reinhart Dozy, idealized Andalusia as a beacon of tolerance contrasting with medieval European persecution. Others emphasized the structural inequality of dhimmi status, framing it as systemic subordination. Edward Said's critique of Orientalism (1978) cautioned against both romanticization and demonization, urging contextual readings of Islamic history. Contemporary scholars such as María Rosa Menocal (*The Ornament of the World*) revived interest in Andalusian convivencia, while critics like Darío Fernández-Morera challenged what they viewed as overly rosy depictions.

A balanced reading recognizes that medieval Andalusia outperformed its European Christian contemporaries in religious tolerance while falling short of modern human rights norms—an unsurprising conclusion given the gap between premodern and modern political philosophies.

Sharia and Modern Human Rights

The **Universal Declaration of Human Rights** (UDHR, 1948) articulates principles of equality before the law, freedom of religion (Article 18), and non-discrimination. Tensions between classical sharia rulings and the UDHR have generated extensive Muslim scholarly debate. The **Cairo Declaration on Human Rights in Islam** (1990) attempted to articulate rights within an Islamic framework, though critics argue it subordinates universal rights to sharia interpretation.

Reformist Muslim thinkers—including Fazlur Rahman, Abdullahi An-Na'im, Khaled Abou El Fadl, and Tariq Ramadan—have argued for **maqasid al-sharia** (مقاصد الشريعة, "the higher objectives of sharia"), emphasizing the protection of life, intellect, religion, lineage, and property as a basis for reinterpreting classical rulings in light of contemporary realities, including full citizenship for non-Muslims.

A Humanistic Approach

A humanistic reading of sharia, informed by historical experiences like Andalusia, foregrounds several principles:

1. **Dignity as foundational:** Human dignity (karāmah) precedes confessional identity.
2. **Contextual jurisprudence:** Rulings on minorities reflected medieval political realities, not eternal mandates.

3. **Pluralism as Qur'anic ideal:** Diversity of belief is divinely ordained, not a problem to be eliminated.
4. **Justice (ʿadl, عدل) as supreme value:** Classical jurists agreed that injustice voids legitimacy, even against non-Muslims.
5. **Citizenship over dhimma:** Many contemporary scholars argue that the modern nation-state framework of equal citizenship is more consistent with Qur'anic ethics than the medieval dhimmi system.

Lessons for Today

Andalusia teaches that pluralism under Islamic rule was historically possible, productive, and complex. Its libraries, scholars (Maimonides, Ibn Rushd, Ibn Hazm), and architectural marvels emerged precisely from inter-confessional collaboration. Yet its limitations remind us that medieval frameworks cannot be uncritically transplanted into the twenty-first century.

For Muslim-majority societies navigating diversity today—and for Muslim minorities in non-Muslim contexts—the Andalusian legacy suggests that Islamic tradition contains robust resources for pluralism when read through the lenses of justice, dignity, and the higher objectives of sharia. The conversation between classical fiqh, theological humanism, and modern human rights instruments remains essential and unfinished.

SEGMENTED DATA (1)

Lessons from Andalusia on Pluralism under Islamic Rule

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